
TENANCY NOTICE

Notice to Terminate Tenancy under the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act,

Ref: TN/2026/156

THIS AGREEMENT is made on this _____ day of _____, 20____

BETWEEN:

1. SUNRISE INVESTMENTS LIMITED

The Landlord, of P.O. Box 4444-00100, Nairobi

2. KIBERA RETAIL STORES

The Tenant, of P.O. Box 5555-00200, Nairobi

NOW THEREFORE, the parties agree as follows:

1. PARTIES

This Notice is given by the Landlord to the Tenant in respect of the premises known as Shop No. 12, Sunrise Plaza, Ngong Road, Nairobi (hereinafter "the Premises").

2. TENANCY DETAILS

The Tenant holds a monthly tenancy of the Premises at a monthly rent of KES 120,000, which tenancy commenced on 1st January 2024.

3. GROUNDS FOR TERMINATION

The Landlord hereby gives notice of termination of the tenancy on the following grounds: (a) The Tenant has persistently defaulted in payment of rent; (b) The Tenant has breached the terms of the tenancy by subletting without consent; (c) The Landlord intends to carry out substantial renovations to the building.

4. NOTICE PERIOD

The Tenant is hereby given two (2) months' notice of termination of the tenancy, effective from the date of this notice.

5. VACANT POSSESSION

The Tenant is required to deliver vacant possession of the Premises on or before the expiry of the notice period.

6. RENT ARREARS

As at the date of this notice, the Tenant owes KES 360,000 in rent arrears. The Tenant is required to clear all arrears before vacating.

7. RIGHT OF REFERENCE

The Tenant may refer this notice to the Business Premises Rent Tribunal within thirty (30) days of receipt, in accordance with Section 6 of the Act.

8. EFFECT OF NON-COMPLIANCE

If the Tenant fails to vacate or refer this notice to the Tribunal within the prescribed period, the Landlord may apply to the Tribunal for an order of eviction.

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SCHEDULES

Schedule 1: Statement of Rent Arrears

Rent arrears as at date of notice: March 2026: KES 120,000 (unpaid); April 2026: KES 120,000 (unpaid); May 2026: KES 120,000 (unpaid). Total: KES 360,000.